

TENTATIVE RULING

Case: **Rojas v. Yolo Eats, Inc.**
 Case No. CV2024-1256

Hearing Date: **March 5, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff's unopposed motion for preliminary approval of class action settlement. (Cal. Rules of Court, rule 3.769(c), (d).) Prior to the hearing the parties are **DIRECTED** to meet and confer and be prepared to discuss selecting a date for a final approval hearing. (Cal. Rules of Court, rule 3.769(e).)

TENTATIVE RULING

Case: State Farm General Insurance Company v. Quenga
Case No. CV2025-2379

Hearing Date: March 5, 2026 **Department Eleven** **9:00 a.m.**

Demurrer:

The Court rules on defendant Barbara Quenga's demurrer to plaintiff's complaint as follows:

- Defendant's demurrer to all causes of action in the first amended complaint on the ground of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The Court finds that the allegations of the complaint are sufficiently clear apprise defendants of the issues she is to meet. (See *Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643; see also *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 citing *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures."]; FAC, ¶¶ 2 and 6 - 9.)
- Defendant's demurrer to all causes of action in the first amended complaint on the ground that they fail to state facts to constitute any cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that the allegations of the first amended complaint sufficiently allege defendant's ownership, possession, control, duty, and actual or constructive notice. (See *Krug v. Meeham* (1952) 109 Cal.App.2d 274, 277; FAC, ¶¶ 2, 6 - 9, 11, 12, 15, 21, 22 and 34.)
- Defendant's demurrer to the first amended complaint on the ground that plaintiff fails to allege subrogation standing is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e); see *Oakland Municipal Improv. League v. City of Oakland* (1972) 23 Cal.App.3d 165, 170.) The Court finds that there are sufficient allegations to support plaintiff's subrogation standing. (See *Fireman's Fund Ins. Co. v. Maryland Casualty Co.* (1998) 65 Cal.App.4th 1279, 1291-1293; *Pacific Gas & Electric Co. v. Superior Court* (2006) 144 Cal.App.4th 19, 23; FAC, ¶¶ 2, 6 - 9, 13, 16, 17, 19, 23, 24, 27, 28, 31 and 35 - 38.)
- Defendant's demurrer to the first cause of action for negligence on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has sufficiently alleged facts to support a cause of action for negligence. (See *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917-918; see also *Guilliams v. Hollywood Hospital* (1941) 18 Cal.2d 97, 101 ["it is established that a cause of action may be stated in which negligence is alleged in general terms, without detailing the specific manner in which the injury occurred."]; FAC, ¶¶ 2, 6 - 9, 11 - 13.)